

Madhu Singh v. State of U.P. — Permanent disconnection and No Dues Certificate left to Supply Code procedure

High Court of Judicature at Allahabad · Division Bench · 25 February 2015 · WRIT - C No. - 11707 of 2015 · **Writ disposed; petitioner left to Supply Code procedure.**

HEADNOTE

A consumer whose connection had been permanently disconnected sought a writ directing the licensee to accept the balance and issue a No Dues Certificate. The Court did not examine entitlement and disposed of the petition, leaving the petitioner to follow the procedure prescribed under the Uttar Pradesh Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Madhu Singh, held electricity connection No. 291548. After that connection was permanently disconnected, she filed a writ petition in the Allahabad High Court seeking a direction that the respondents permit her to deposit the outstanding balance and issue a No Dues Certificate. Counsel for the distribution corporation submitted that permanent disconnection and a No Dues Certificate must follow the procedure under the Uttar Pradesh Electricity Supply Code, 2005. The Division Bench disposed of the petition on that submission without examining the claim on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

permanent disconnection and no-dues certificate

HOLDING

A writ seeking leave to deposit arrears and obtain a No Dues Certificate after permanent disconnection will be disposed of without a merits direction, leaving the consumer to the procedure prescribed under the Uttar Pradesh Electricity Supply Code, 2005. ¶ 2-3

FLAG order invokes the 2005 Code without identifying a clause

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE MERITS TO DEPOSIT THE BALANCE AND OBTAIN A NO DUES CERTIFICATE

The writ was disposed without examining entitlement; the petitioner was left to the Supply Code procedure. ¶ 3